

****The Thin Line Between Courts of Disinformation and Truth****

Intervention by Guido Scorza, member of the Data Protection Authority
(MF, October 17, 2023)

The new war in Israel, the entry into force of the Digital Service Act (the European regulation enacted, among other things, with the aim of holding big tech accountable to our rules, including those regarding disinformation), and Elon Musk, the richest man in the world, at the helm of X, formerly Twitter, one of the social platforms that most influences the global media diet, along with the upcoming European elections: these are the ingredients of the perfect storm that is hitting the European digital ecosystem. The first lightning strikes in recent days have taken the form of accusations that, first informally through the voice of European Commissioner for Industry and Internal Market Thierry Breton—who does not hide his ambition to become President of the European Commission—and then formally under the new Digital Service Act, the European Commission has directed at X: too much disinformation regarding the Israeli-Palestinian issue, too few controls, too few interventions to ensure a greater balance of circulating information and to limit propaganda actions through fake news.

"Please specify our responsibilities clearly," Elon Musk immediately requested through a post that was once called a tweet due to the name (Twitter) and the brand (a blue bird) of the platform that the South African magnate has literally transformed over the past year. It is difficult to respond. It is pointless to beat around the bush because this is the heart of the matter.

It is difficult to be precise when it comes to saying what is information and what is disinformation.

It is difficult to contest anyone who claims that post A should not have been allowed to be published while post B should have been, or that post C should have been removed more quickly. It is always difficult, but even more so when, as in this case, the recipient of the accusations is a global platform that disseminates billions of fragments of information published by hundreds of millions of users every day, and even more difficult if there is the ambition to act within a timeframe close to so-called real time. Certainly, there are edge cases, those in which distinguishing the false from the true is easy, immediate, algorithm-proof, and beyond the capabilities of a moderator lacking specific expertise, but these are indeed edge cases, exceptional, not the rule, not the content produced within increasingly organized, structured, and sophisticated disinformation campaigns. And it is here that the best intentions of the righteous war against disinformation clash with reality and threaten to unleash the perfect storm. Because while it is known that Musk operates from positions likely biased towards laissez-faire, how can one be certain that a political entity like the European Commission is not influenced and conditioned—of course, in absolute good faith—when it identifies certain content as needing removal while failing to identify others, perhaps even certainly—because it does not manage to pinpoint them or does not do so with the same speed?

Governing information in the information society is the most difficult of the challenges we face in the digital ecosystem. The line between positioning oneself as a judge of correct and transparent information and ending up becoming a judge of truth is extraordinarily thin, but while the quality of information is the most precious resource for any democracy, the "censorship" one risks stumbling into when labeling true information as false or vice versa, or simply when labeling truly false information as false but failing to do the same with equally false information that perhaps supports the opposing thesis, is the worst enemy of every democracy. The rules of the Digital Service Act regarding disinformation are, in principle, balanced, modern, and enlightened, but as often happens, the gap between enunciating a principle and translating it into action is longer than it appears.

And the situation that sees Breton and Musk, the European Commission and X, at odds in these hours is a first test case that cannot be mishandled because if one errs, there is a risk of throwing away years of extraordinary work dedicated to seeking—and perhaps finding—the best possible balance for governing the digital information system and removing the absolute monopoly on the global media diet from a handful of big tech companies. Caution and deliberation are needed; personalism must be set aside, and efforts must be made to identify objective parameters capable of reinforcing the content between the court of disinformation—legitimate and desirable—and that of truth—which cannot have citizenship in a democracy—and this must be done with an open mind to any possible scenario,

including the one in which it must be acknowledged that a good idea, a sound and democratic rule in principle, once put into action, becomes dangerous and risks turning into a cure worse than the disease.